Sat, May 24, 8:03 PM

Eric Jones
<eric@recovery-compass.org>

to Heidi,
shaymaelababidi,
Nuha, garyjon831,
shay.labadidi,
wbates64, Kathy

Heidi,

As Primary Successor Trustee of the Judy Brakebill Jones 2008 Revocable Trust, I hereby demand immediate return of the decedent's actual iPhone, which remains in your unauthorized possession despite your May 21, 2025 device substitution.

FACTUAL SUMMARY:

April 5, 2025 (Day after Mom's death): GPS tracking revealed Mom's iPhone at motel off 101 freeway near In-N-Out, Salinas. When questioned, you stated "her daughters got it, they have it, they're with it right now."

April 12, 2025 (3:46 PM): I sent you urgent text message: "Heidi!!! Make SURE to save ALL texts and sync moms phone with iCloud before it's too late cause we need that stuff did you do that???" You never responded to this critical preservation request.

April 12, 2025 (3:46-3:49 PM): I explained the phone's importance: "She lived her whole life through that phone and so much of her is in there" and repeatedly asked "Did you do that??" and "Who has her phone?" - demonstrating my immediate concern for proper estate digital asset preservation.

April 12 - May 21, 2025: Despite my urgent requests for data backup and preservation, you maintained unauthorized control of the device for 39+ additional days without trustee consent or response to preservation demands.

May 21, 2025 (10:00 AM): You secretly placed substitute iPhone SE on my kitchen table while staying at my house, without direct communication about the device exchange, approximately 2 hours before departing in Uber to San Diego to meet Shaymae.

May 21, 2025 (12:00 PM): You departed for San Diego with our father, leaving the substitute device behind without explanation or verification it was Mom's actual phone.

May 21-Present: GPS tracking indicates Mom's actual iPhone remains in your possession, having traveled with you to Oregon, while the substitute device remains non-functional and clearly not Mom's actual phone containing her digital legacy.

LEGAL VIOLATIONS:

Your **50+ day unauthorized retention** of estate property, **combined with ignoring urgent preservation requests and calculated deception**, violates:

- California Probate Code §850 (wrongful taking of trust property)
- California Probate Code §859 (bad faith concealment warranting double damages)
- Trustee authority under the Judy Brakebill Jones 2008 Revocable Trust
- Fiduciary duty to preserve estate assets including irreplaceable digital memories
- Deliberate disregard of April 12 backup requests showing awareness of trustee authority
- Potential evidence spoliation if device data has been altered or deleted during extended retention period

DIGITAL ASSET CONTROL:

The retained device provides unauthorized access to:

- Two-factor authentication codes for financial accounts
- Estate-related communications and photographs
- Digital asset verification systems (including cryptocurrency platforms)
- Personal and financial information belonging to the trust

IMMEDIATE DEMAND:

You have **48 HOURS** from receipt of this notice to:

1. Return the genuine iPhone in unaltered condition with all data intact
2. Provide written certification that no data has been deleted, modified, or accessed since April 4, 2025
3. Surrender all access credentials to any accounts linked to the device
4. Cease any further interference with trust property or digital assets

CONSEQUENCES OF NON-COMPLIANCE:

Failure to comply within the specified timeframe will result in:

- Emergency court action under Probate Code §850 for return of estate property
- Double damages claim under Probate Code §859 for continued bad faith retention
- Potential criminal referral for theft of estate property (Penal Code §487)
- Federal investigation coordination (IC3 complaint already filed: #32f33da22087436fba06d8e340377cca)

FINAL OPPORTUNITY:

This represents your final opportunity to voluntarily comply before mandatory legal enforcement. My April 12 urgent requests to preserve Mom's digital legacy - "She lived her whole life through that phone and so much of her is in there" - demonstrate my immediate concern for protecting her irreplaceable memories, not improper access. Your 50+ day retention pattern, combined with ignoring these preservation requests and the calculated secret device substitution, establishes clear bad faith conduct that has been thoroughly documented and reported to appropriate authorities.

Mom trusted you. Honor that trust by returning her property and preserving her digital legacy as I requested from the beginning.

Eric Brakebill Jones
Primary Successor Trustee
Judy Brakebill Jones 2008 Revocable Trust
530-219-2364 | eric@recovery-compass.org

DELIVERY CONFIRMATION REQUESTED
ATTORNEY-CLIENT PRIVILEGE CLAIMED
EVIDENCE PRESERVATION NOTICE